

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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SHARRON BROWN,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE SHAWN
WILKINSON, Tax No. 920969, DETECTIVE JEFF
HARRIS, Shield No. 01542, DETECTIVE STEVEN
GANSROW, Shield No. 02866, and POLICE OFFICERS
JOHN DOES #1-4 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

Defendants.
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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 18, 2014

Yours, etc.



JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE SHAWN WILKINSON, Tax No. 920969, 1 Police Plaza, Room 1100,
New York, NY 10038

DETECTIVE JEFF HARRIS, Shield No. 01542, 1 Police Plaza, Room 1100, New York, NY 10038

DETECTIVE STEVEN GANSROW, Shield No. 02866, 1 Police Plaza, Room 1100, New York, NY 10038

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, SHARRON BROWN, by his attorneys, Jacobs & Hazan, LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On July 18, 2012, at approximately 5:00 p.m., plaintiff, Sharron Brown, while lawfully present in the vicinity of 67 Macombs Place, New York, New York, was subject to an unlawful stop, frisk, search, detention, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined plaintiff, and caused the unjustifiable arrest of plaintiff.

PARTIES

2. Plaintiff SHARRON BROWN is a resident of the County of New York, State of New York.

3. DETECTIVE SHAWN WILKINSON, Tax No. 920969, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE SHAWN WILKINSON, Tax No. 920969, is and was at all times relevant herein assigned to the Narcotics Borough Manhattan North.

5. DETECTIVE SHAWN WILKINSON, Tax No. 920969, is being sued in his individual and official capacity.

6. DETECTIVE JEFF HARRIS, Shield No. 01542, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. DETECTIVE JEFF HARRIS, Shield No. 01542, is and was at all times relevant herein assigned to the Narcotics Borough Manhattan North.

8. DETECTIVE JEFF HARRIS, Shield No. 01542, is being sued in his individual and official capacity.

9. DETECTIVE STEVEN GANSROW, Shield No. 02866, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. DETECTIVE STEVEN GANSROW, Shield No. 02866, is and was at all times relevant herein assigned to the Narcotics Borough Manhattan North.

11. DETECTIVE STEVEN GANSROW, Shield No. 02866, is being sued in his individual and official capacity.

12. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-4 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible.

The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. On July 18, 2012, at approximately 5:00 p.m., plaintiff lawfully exited his apartment building located at 67 Macombs Place, New York, New York and entered the grocery store located on the ground floor of 67 Macombs Place to buy a sandwich for his grandmother, with whom plaintiff lived.

20. While plaintiff was waiting for the sandwich to be made, he exited the grocery store and stood on the sidewalk in front of the store.

21. Approximately one minute after plaintiff exited the store, an acquaintance from the neighborhood walked on the sidewalk near the deli.

22. Almost immediately after plaintiff saw the acquaintance from the neighborhood, plaintiff observed several New York City Police Officers began to chase the acquaintance.

23. Then, the defendant police officers unlawfully and without legal justification, approached and detained plaintiff.

24. The defendant police officers then unlawfully stopped, questioned, and frisked plaintiff.

25. The defendant police officers ordered plaintiff to empty his pockets and remove his shoes, without cause or legal justification and plaintiff complied with the defendants' unlawful orders.

26. At no time did the defendant police officers have reasonable suspicion, probable cause, or any objectively reasonable basis to believe plaintiff committed or was about to commit a crime or that he secreted any unlawful contraband in his shoes or clothing.

27. Nevertheless, the defendant police officers unlawfully stopped, questioned, frisked, and searched plaintiff without reasonable suspicion, probable cause, or legal justification.

28. At no time did the defendants recover any weapons, drugs, or illegal contraband from plaintiff, or within the possession, custody or control of plaintiff.

29. The defendant police officers handcuffed and falsely arrested plaintiff without probable cause or legal justification.

30. The other individually named defendant police officers that were present at the scene of the incident but that did not physically touch or detain plaintiff failed to intervene to prevent the unlawful stop, question, frisk, and false arrest of plaintiff.

31. The defendant police officers then unlawfully transported plaintiff to a police precinct against his will.

32. While at the precinct, the defendant police officers proceeded to conduct a second unlawful search of plaintiff even though they did not recover any weapons, drugs, or contraband from plaintiff during the initial search and had no reason to believe plaintiff was hiding contraband on his person or in his clothing.

33. Plaintiff was transported to Manhattan Central Booking after being unlawfully detained at the precinct for many hours.

34. Defendants falsely charged plaintiff with possession of marijuana, even though marijuana was not found in the possession, custody or control of plaintiff.

35. Defendants maliciously initiated a prosecution against plaintiff without probable cause by providing the District Attorney's Office with false, incomplete, and/or misleading information regarding the facts of plaintiff's arrest.

36. After approximately 30 hours in custody, plaintiff was arraigned, and released on his own recognizance.

37. On or about November 13, 2012, all criminal charges against plaintiff were dismissed in their entirety.

38. Some of the police officer defendants that did not physically touch or seize plaintiff observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest or prosecution.

39. The unlawful stop, question, frisk, search, false arrest, false imprisonment, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

40. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally stop, question, search, and arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or

probable cause to believe the individual secreted contraband, evidence, or has a weapon on their person, or that they had committed a crime or violated any law or ordinance.

41. As a result of defendant City of New York and the New York City Police Department's policy of unconstitutionally stopping, questioning, searching, and arresting individuals, which are conducted without probable cause or reasonably articulable suspicion, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely conduct these searches and arrests without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, searching, and arresting individuals without a factual basis supporting a legal reason to do so.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully search, falsely arrested, falsely imprisoned, and maliciously prosecuted plaintiff without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

44. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

47. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

48. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop and Frisk

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The conduct of defendants in stopping and frisking plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

51. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

52. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

53. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional and statutory rights under the New York State law.

54. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

55. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

58. Defendants lacked probable cause to search plaintiff.

59. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

60. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Failure to Intervene

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

63. Defendants failed to intervene to prevent the unlawful conduct described herein.

64. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

65. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

66. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

69. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were

not limited to, illegally stopping, questioning, searching, and arresting individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable cause to believe the individual secreted contraband, evidence, or has a weapon on their person, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

70. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

71. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

72. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

73. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, searched and arrested.

74. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

75. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Sharron Brown demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys' fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 18, 2014

By: 

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
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TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
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York, NY 10038
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New York, NY 10038

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

Dated: New York, New York
 February 18, 2014

By:



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